

Dr Gudepuvalasa Deepthi vs Peluri Venkata Srinadh on 9 October, 2025

APHC010358402025

IN THE HIGH COURT OF ANDHRA PRADESH
ATAMARAVATI

THURSDAY, THE NINTH DAY OF OCTOBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 215 OF 2025

Between:

DR Gudepuvalasa Deepthi, W/o Peluri Venkata Srinadh, Age: 31 yrs
Occ: Civil Assistant Surgeon Specialist (Ortho), Government Hospital at
badangi, Vizainagaram District Permanent Resident of Krishnudi
Temple Street, Therlam Village and Mandal, Vizainagaram District.

...Petitioner/Respondent

AND

Peluri Venkata Srinadh, S/o Late Narasimha Rao, Age: 38 yrs, R/o
D.No.2-5-14, Near Annapurna Theatre, Narasapuram Village and
Mandal, West Godavari District, Now working as Finance Officer, HIT
College, Nuziveedu, Eluru District.

...Respondent/Petitioner

Petition under Section 24 of the C.P.C. Praying that in the circumstances
stated in the affidavit filed therewith, the High Court may be pleased to
transfer H.M.O.P.No.89/2023 on the file of Senior Civil Judge Court,
Narsapuram to Senior Civil Judge Court at Bobbili.

LA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated

in the affidavit filed in support of the petition, the High Court may be pleased / may be pleased to stay of all further proceedings in H.M.O.P.No.89/2023 on the file of Senior Civil Judge Court, Narsapuram.

Counsel for the Petitioner: Sri M P V N V Sastri

Counsel for the Respondent: Sri Padmanabham A

The Court made the following Order:

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THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.215 of 2025

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short 'the C.P.C.') seeking transfer of H.M.O.P.No.89 of 2023, pending on the file of the Senior Civil Judge, Narsapuram, West Godavari District, to the Senior Civil Judge Court at Bobbin, Vizianagaram District, for trial and disposal of the same.

2. The case of the petitioner in brief is as follows:

The petitioner is the legally wedded wife of the respondent/husband and the marriage of the petitioner with the respondent was solemnized on 09.11.2019, at Dwaraka Tirumala Devasthanam, as per the Hindu Rites and Caste Customs. After that, in view of the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately and working as a Civil Assistant Surgeon Specialist (Ortho) in Government Hospital, at Chinthalapudi.

The petitioner/wife pleaded that due to the adamant behavior of the respondent/husband herein, the petitioner/wife, lodged a complaint against the respondent/husband which was registered as Crime No. 178 of 2023, for the offence T VGKK, Tr.C.M.P.No.215 of 202S, Dated 09.10.2025 punishable under Section 498-A I.P.C. and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Therlam Police Station, after completion of investigation, the same was numbered as C.C.No.65 of 2024 on the file of the Principal Junior Civil Judge-cum-Judicial Magistrate of First Class, Bobbin, and also filed Domestic Violence Case vide D.V.C.No.18 of 2024 on the file of the Judicial Magistrate of First Class, Bobbin, under Section 12 of the Protection of Women From Domestic Violence Act, 2005 and the aforesaid cases are pending for adjudication.

The petitioner/wife would further contend that with a view to cause inconvenience and to harass the petitioner/wife, the respondent/husband herein had filed divorce petition i.e., vide H.M.O.P.No.89 of 2023, on the file of the Senior Civil Judge, Narsapuram, West Godavari District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

III) The petitioner/wife further pleaded that she being a woman. residing separately and working as a Civil Assistant Surgeon Specialist (Ortho) in Government Hospital, at Badangi in Vizianagaram District, the distance between the Badangi and > VGKR, J Tr.C.M.P.No.215of 2025 Dated 09.10.2025 Narsapuram is more than 4000Kms and it is very difficult for her each and to travel to attend the divorce case proceedings on every adjournment without any male assistance and that she was constrained to file the present petition seeking transfer of H.M.O.P.No.89 of 2023, pending on the file of the Senior Civil Judge, Narsapuram West Godavari District, to the Senior Civil Judge Court at Bobbili, Vizianagaram District, for trail and disposal of the same.

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3. Learned counsel for the respondent contended that respondent/husband is a Government Employee currently working in West Godavari District, there are no grounds to allow the present transfer petition from Narsapur to and if this Court is inclined to transfer the present case Bobbili, the personal appearance of the respondent/husband herein before the transferee Court at Bobbili may be dispensed with.

4. Heard learned counsel appearing on both sides on record.

5 Perused the material available on record.

6. The material on record prima facie goes to show that, in view of the n^atrimonlal disputes between both the spouses, the petitioner/wife has been residing separately and working as a Civil Assistant Surgeon Specialist (Ortho) District. She has in Government Hospital, at Badangi in Vizianagaram instituted two (02) cases against the respondent/husband herein i.e., Criminal VGKR, i Dated 09.10.2025 Case which was registered as C.C.No.65 of 2024 on the file of the Principal Junior Civil Judge-cum-Judicial Magistrate of First Class, Bobbin, and Domestic Violence Case vide D.V.C.No 18 of 2024 on the file of the Judicial Magistrate of First Class, Bobbin, under Section 12 of the Protection of Women From Domestic Violence Act, 2005 and the aforesaid cases are pending for adjudication before the competent Courts at Bobbili. Furthermore, the material on record further discloses that, the respondent/husband has instituted a divorce petition vide H.M.O.P.No.89 of 2023, on the file of the Senior Civil Judge, Narsapuram, West Godavari District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

7. The Apex Court in a case of GEETA HEERA t/s HARISH CHANGER HEERA\ held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed.

8. The Apex Court in a case of N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA[^], held as follows:

•9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, [^](2000) 10 see 304 [^] 2022 LiveLaw (SC) 627 / VGKR, J Tr.C.M.P.No.215 of 2025 Dated 09.10.2025 wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer. "

9. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case laws and on considering the facts and circumstances of the case, that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband and the petitioner/wife has been residing separately and working as a Civil Assistant Surgeon Specialist (Ortho) in Government Hospital, in Vizianagaram District, it is very difficult for her to travel to attend the case proceedings before the Court at Narsapuram, without any male assistance and therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife. seeking transfer of H.M.O.P.No.89 of 2023 on the file of the Senior Civil Judge, Narsapuram, West Godavari District, to the Senior Civil Judge Court at Bobbili, Vizianagaram District. On considering the representation made by the learned counsel for the respondent that respondent/husband herein is working as a Government employee working in West Godavari District, it is desirable to \ \ T VGKR, j Dated 09.10.2025 dispense with the personal appearance of the respondent/husband herein i.e., the petitioner in H.M.O.P.No.89 of 2023 on the file of the Senior Civil Judge, Narsapuram, West Godavari District, before the transferee Court, except on the days when his personal appearance is required before the said Court as per iaw.

10. In the result, the Transfer Civil Miscellaneous Petition is allowed and H.M.O.P.No.89 of 2023, on the file of the Senior Civil Judge, Narsapuram, West Godavari District, is hereby withdrawn and transferred to the Senior Civil Judge Court at Bobbin, Vizianagaram District. The learned Senior Civil Judge, Narsapuram, West Godavari District, shall transmit the case record in H.M.O.P.No.89 of 2023, to the Senior Civil Judge Court at Bobbin, Vizianagaram District, duly indexed as expeditiously as possible preferably within a period of one (01) week from the date of receipt of a copy of the order, Both the parties are directed to appear before the Senior Civil Judge Court at Bobbin, Vizianagaram District, on 03.11.2025, at 10.30 a.m. Further, it is represented by the learned counsel appearing on both sides that the aforesaid case i.e., H.M.O.P.No.89 of 2023 has been instituted in the year 2023 and the matter was posted for recording the cross-examination of PW1 before the Senior Civil Judge, Narsapuram and some time limit may be fixed to the transferee Court i.e., Senior Civil Judge, Bobbin, Vizianagaram District, for disposal of the case. On considering the

submissions made by the learned counsel appearing on both sides, this court feels that it is desirable to direct the learned Senior / VGKR, J Tr.C.M.P.No.215of2025 Dated 09.10.2025 Civil Judge, Bobbili, Vizianagaram District, to dispose of the matter within a period of six (06) months from the date of appearance of both the parties. Later the learned Senior Civil Judge Court at Bobbili, Vizianagaram District, IS hereby directed not to insist for the personal appearance of the respondent herein i.e., the petitioner in H.M.O.P.No.89 of 2023, as long as his counsel is attending the Court proceedings and representing the case except on the day when his cross-examination is required to be recorded or on any other day when his personal appearance is specifically required as directed by the learned Senior Civil Judge Court at Bobbili, Vizianagaram District. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

Sd/- K SRINIVASA RAJU ASSISTANT REGISTRAR //TRUE COPY// SECTION OFFICER To,

1. The Civil Judge (Senior Division) Court, Narsapauram, West Godavari District.
2. The Principal District Judge, West Godavari District, Eluru.
3. The Principal District Judge, Vizianagaram District, Vizianagaram.
4. The Civil Judge (Senior Division) Court, Bobbili, Vizianagaram District.
5. One CC to Sri M P V N V Sastri Advocate [OPUC]
6. One CC to Sri Padmanabham A Advocate [OPUC]
7. DR Gudepuvalasa Deepthi, W/o Peluri Venkata Srinadh, Age: 31 yrs Occ: Civil Assistant Surgeon Specialist (Ortho), Government Hospital at badangi, Vizainagaram District Permanent Resident of Krishnudi Temple Street, Therlam Village and Mandal, Vizainagaram District.
8. Peluri Venkata Srinadh, S/o Late Narasimha Rao, Age: 38 yrs, R/o D.No.2-5-14, Near Annapurna Theatre, Narasapuram Village and Mandal, West Godavari District, Now working as Finance Officer, HIT College, Nuziveedu, Eluru District.
9. Two CD Copies SAM vna \ \ \ \ HIGH COURT \ X, \ DATED:09/10/2025 ORDER ALLOWING THE TRCMP WITHOUT COSTS